

VCU326755 Stankewitz, Nancy vs. Stankewitz, Kelly

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-08-20

Motion: (1) Plaintiff's Motion to Compel Initial Responses to Requests for Production; (2) Plaintiff's Motion to Deem Admissions Admitted; Sanctions

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Re: Stankewitz, Nancy vs. Stankewitz, Kelly

Case No.: VCU326755

Date: August 20, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: (1) Plaintiff's Motion to Compel Initial Responses to Requests for Production; (2) Plaintiff's Motion to Deem Admissions Admitted; Sanctions

Tentative Ruling: (1) To grant the motion and order responses within thirty (30) days after service of the notice of this ruling for this motion; (2) To grant the motion and deem Admission Nos. 1-35 admitted; to issue sanctions in the amount of \$495 due within thirty (30) days after service of the notice of this ruling for this motion; Plaintiff shall give notice.

Facts Common to (1) and (2)

In this quiet title, financial elder abuse and cancellation of written instrument action, Plaintiff served, on April 28, 2026, requests for production of documents, set one, and requests for admissions, set one, via mail.

As of the filing of these motions July 16, 2026, no responses have been received.

Plaintiff moves for compel initial responses to the production request and to deem admissions admitted. Plaintiff further seeks sanctions.

No opposition appears filed.

Authority and Analysis

(1) Requests for Production

Based on Defendant's failure to respond to the first set requests for production of documents, the Court orders under, Code of Civil Procedure section 2031.300(a) that Defendant provide full and complete verified responses without objection to Plaintiff's first set of requests for production of documents, within thirty (30) days after service of the notice of this ruling for this motion. Plaintiff shall give notice.

(2) Requests for Admissions

Code of Civil Procedure section 2033.280 states that if a party to whom requests for admissions have been directed fails to serve a timely response, the propounding party may move for an order that the truth of any facts specified in the requests for admissions be deemed admitted. Here, Defendant has failed to serve a timely response and Plaintiff has moved for an order to deem the admission admitted.

Based on the foregoing, the Court grants Plaintiff's motion. The facts and allegations alleged in Requests for Admissions 1 through 35 of Plaintiff's First Set of Requests for Admission shall be deemed admitted.

Sanctions

Under Code of Civil Procedure sections 2033.280(c) (Admissions) and 2031.300(c) (Requests for Production) Plaintiff seeks sanctions in the amount of \$930 total, consisting of "2.0 hours at the rate of \$375.00 per hour and my client incurred \$180.00 in motion fees in connection with these three discovery motions..."

The Court notes two motions filed.

The Court notes there is no meet and confer requirement and all that is necessary to obtain the relief requested on this motion to compel initial responses is that the other party failed to respond within the designated time.

The Court will award one hour at the rate of \$375, plus \$120 in filing fees, for a total of \$495. Sanctions are imposed against Defendant and are due within thirty (30) days after service of the notice of this ruling for this motion. Plaintiff shall give notice.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.